

SENATE BILL 304

By Haile

AN ACT to amend Tennessee Code Annotated, Title 24,
Chapter 7, relative to child forensic interviews.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 24-7-123(b)(1), is amended by deleting the subdivision and substituting:

(1) The child or the forensic interviewer who conducted the interview testifies, under oath, that the offered video recording is a true and correct recording of the events contained in the video recording and the child is available for cross examination;

SECTION 2. Tennessee Code Annotated, Section 24-7-123(b)(3)(A), is amended by deleting the subdivision and substituting:

(i) Was employed by a child advocacy center that meets the requirements of § 9-4-213(a) or (b); provided, however, that an interview shall not be inadmissible solely because the interviewer is employed by a child advocacy center that:

(a) Is not a nonprofit corporation, if the child advocacy center is accredited by a nationally recognized accrediting agency; or

(b) Employs an executive director who does not meet the criteria of § 9-4-213(a)(2), if the executive director is supervised by a publicly elected official; or

(ii) Was employed by a federal agency and conducted the forensic interview in the course of an investigation of a federal crime;

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.